

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KEMANIE BAILEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE
CHRISTOPHER CONNOLLY, Shield No. 1539, POLICE
OFFICER JEANNE MOUNSEY, LIEUTENANT
ABDULLRAHMAN HUSSEIN, DETECTIVE RAMOS,
DETECTIVE VALENTINO, DETECTIVE RUDY
LAHENS, Shield No. 2065, POLICE OFFICER JOSEPH
NOTARO, POLICE OFFICER RYAN GLASSER,
DETECTIVE KENNETH ANDERSON, Shield No. 1240,
and POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident
Kings County as the place of
trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 20, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE CHRISTOPHER CONNOLLY, SHIELD NO. 1539, 75TH PRECINCT,
1000 SUTTER AVE, BROOKLYN, NY 11208
POLICE OFFICER JEANNE MOUNSEY, 75TH PRECINCT, 1000 SUTTER AVE,
BROOKLYN, NY 11208
LIEUTENANT ABDULLRAHMAN HUSSEIN, 75TH PRECINCT, 1000 SUTTER
AVE, BROOKLYN, NY 11208
DETECTIVE RAMOS, 75TH PRECINCT, 1000 SUTTER AVE, BROOKLYN, NY
11208
DETECTIVE VALENTINO, 75TH PRECINCT, 1000 SUTTER AVE, BROOKLYN, NY
11208
DETECTIVE RUDY LAHENS, SHIELD NO. 2065, 75TH PRECINCT, 1000 SUTTER
AVE, BROOKLYN, NY 11208
POLICE OFFICER JOSEPH NOTARO, 75TH PRECINCT, 1000 SUTTER AVE,
BROOKLYN, NY 11208
POLICE OFFICER RYAN GLASSER, 75TH PRECINCT, 1000 SUTTER AVE,
BROOKLYN, NY 11208
DETECTIVE KENNETH ANDERSON, SHIELD NO. 1240, 75TH PRECINCT, 1000
SUTTER AVE, BROOKLYN, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KEMANIE BAILEY,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE
CHRISTOPHER CONNOLLY, Shield No. 1539, POLICE
OFFICER JEANNE MOUNSEY, LIEUTENANT
ABDULLRAHMAN HUSSEIN, DETECTIVE RAMOS,
DETECTIVE VALENTINO, DETECTIVE RUDY
LAHENS, Shield No. 2065, POLICE OFFICER JOSEPH
NOTARO, POLICE OFFICER RYAN GLASSER,
DETECTIVE KENNETH ANDERSON, Shield No. 1240,
and POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff KEMANIE BAILEY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 3, 2017 at approximately 3:30 P.M. plaintiff was unlawfully stopped, questioned, frisked, searched, and falsely imprisoned/ arrested in the vicinity of Vermont Street and New Lots Avenue, Brooklyn, New York by defendants. Thereafter, he was unlawfully handcuffed and transported to the 75th Precinct by defendants. Plaintiff was unlawfully detained for 30 hours before he was arraigned in Kings County Criminal Court and charged with serious felony crimes, including Criminal Possession of a Weapon and Assault. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial even though they knew he did not commit the crimes they charged him with committing. The reason the officers falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process was because they believed plaintiff knew the identities of the individuals that committed the crimes and was refusing to provide the defendants with the names of the perpetrators. The defendants believed

that by arresting plaintiff, he would likely provide defendants with the names of the true perpetrators to avoid being prosecuted for crimes he did not commit. Due to the severity of the crimes plaintiff, a juvenile at the time, was accused of committing, plaintiff was remanded to Riker's Island at arraignment and was housed with adults in the ARDC facility for five additional days before he was released from custody. Plaintiff was required to make two Court appearances and on November 20, 2017 the District Attorney's Office affirmatively moved to dismiss and seal all charges brought against him because the charges could not be proven beyond a reasonable doubt. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully frisked, searched, confined, falsely arrested, maliciously prosecuted, abused process, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

1. Plaintiff KERMANIE BAILEY is a resident of the state of New York.
2. Plaintiff KERMANIE BAILEY was an infant at the time of the underlying incident and turned 18 years of age less than a year and 90 days from the date of the Verified Complaint.
3. Defendant DETECTIVE CHRISTOPHER CONNOLLY, Shield No. 1539, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE CHRISTOPHER CONNOLLY, Shield No. 1539, is and was at all times relevant herein, assigned to the 75th Precinct.
5. Defendant DETECTIVE CHRISTOPHER CONNOLLY, Shield No. 1539, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER JEANNE MOUNSEY is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER JEANNE MOUNSEY, is and was at all times relevant herein, assigned to the 75th Precinct.
8. Defendant POLICE OFFICER JEANNE MOUNSEY is being sued in his individual and official capacity.
9. Defendant LIEUTENANT ABDULLRAHMAN HUSSEIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Defendant LIEUTENANT ABDULLRAHMAN HUSSEIN, is and was at all times relevant herein, assigned to the 75th Precinct.

11. Defendant LIEUTENANT ABDULLRAHMAN HUSSEIN, is being sued in his individual and official capacity.

12. Defendant DETECTIVE RAMOS is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE RAMOS, is and was at all times relevant herein, assigned to the 75th Precinct.

14. Defendant DETECTIVE RAMOS is being sued in his individual and official capacity.

15. Defendant DETECTIVE VALENTINO is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE VALENTINO is and was at all times relevant herein, assigned to the 75th Precinct.

17. Defendant DETECTIVE VALENTINO is being sued in his individual and official capacity.

18. Defendant DETECTIVE RUDY LAHENS, Shield No. 2065, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant DETECTIVE RUDY LAHENS, Shield No. 2065, is and was at all times relevant herein, assigned to the 75th Precinct.

20. Defendant DETECTIVE RUDY LAHENS, Shield No. 2065, is being sued in his individual and official capacity.

21. Defendant POLICE OFFICER JOSEPH NOTARO is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant POLICE OFFICER JOSEPH NOTARO, is and was at all times relevant herein, assigned to the 75th Precinct.

23. Defendant POLICE OFFICER JOSEPH NOTARO is being sued in his individual and official capacity.

24. Defendant POLICE OFFICER RYAN GLASSER is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant POLICE OFFICER RYAN GLASSER, is and was at all times relevant herein, assigned to the 75th Precinct.

26. Defendant POLICE OFFICER RYAN GLASSER is being sued in his individual and official capacity.

27. Defendant DETECTIVE KENNETH ANDERSON, Shield No. 1240, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. Defendant DETECTIVE KENNETH ANDERSON, Shield No. 1240, is and was at all times relevant herein, assigned to the 75th Precinct.

29. Defendant DETECTIVE KENNETH ANDERSON, Shield No. 1240, is being sued in his individual and official capacity

30. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

31. Defendants New York City Police Officers John Does #s1-10 are being sued in their individual and official capacities.

32. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

33. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

34. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a Hearing pursuant to General Municipal Law Section 50-h was conducted by the City of New York on November 27, 2017.

35. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

36. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

37. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

38. By way of background, on May 2, 2017 at approximately 12:30 pm plaintiff was walking with his cousin Sean Robinson from New Lots Avenue to Sheffield Avenue, Brooklyn, New York when they heard a loud sound “boom!”

39. Immediately thereafter, Sean told plaintiff that he was shot in the buttocks, and plaintiff saw a van speed off and also observed three individuals running away.

40. Plaintiff assisted his cousin and helped him walk away from the location of the shooting so that they would be in a safe place.

41. Plaintiff brought his cousin to his girlfriend’s apartment which was located nearby.

42. Plaintiff immediately called 911 to get medical attention for his cousin and to report the shooting to the police.

43. Plaintiff waited for the ambulance to take his cousin to the hospital and then waited to provide the police officers with a description of what occurred.

44. The Defendant police officers asked plaintiff if he would come to the precinct with them and he told the officers that he was happy to go to the precinct with them and assist them in any way he could.

45. Plaintiff accompanied the defendant police officers to the 75th Precinct whereat he was questioned by the defendants about what happened.

46. The defendants left plaintiff in a room for approximately 30 minutes.

47. Then, a Detective returned to the room where plaintiff was located and told him that he was free to go home.

48. The defendant police officers were upset that plaintiff was unable to provide them with the names and/ or identities of the individuals that shot his cousin.

49. Plaintiff truly could not identify the perpetrators, but the defendant police officers were convinced that he knew the perpetrators identities and was withholding their identities from them.

50. Plaintiff's cousin's version of events matched plaintiff's description of events. Plaintiff's cousin told the officers that when he heard the shots, he felt a pain in his buttocks, and unknown perpetrators fled the scene on Sheffield Avenue.

51. Additionally, there were many witnesses to the shooting, and shortly after the shooting witnesses reported that the shooting was a drive-by shooting and that the shooter was inside of the van that plaintiff saw speeding away after the shooting.

52. No gun was ever recovered, and the shooter could not be identified.

53. On May 3, 2017 at approximately 3:30 pm, plaintiff was walking with his brother in the vicinity of Vermont Street and New Lots Avenue when he was suddenly stopped, frisked, searched, and handcuffed by the defendant police officers, without reasonable suspicion, probable cause or legal justification.

54. The defendant police officers did not recover anything illegal from plaintiff's possession, custody or control and falsely arrested him without probable cause to believe he committed a crime.

55. The defendant police officers transported plaintiff to the 75th Precinct whereat defendants questioned plaintiff about the identities of the individuals involved in the shooting again.

56. The defendant police officers told plaintiff that if he did not tell them who shot his cousin then they would charge him with the crime.

57. Plaintiff was unable to provide the officers with the identities of the individuals who shot his cousin.

58. The defendant police officers falsely arrested plaintiff and charged him, amongst other things with felony crimes, such as assault of his cousin and possession of a weapon.

59. The defendant police officers falsely reported to the District Attorney's office that plaintiff's cousin told them that plaintiff shot him.

60. This fabrication by the defendant police officers is contradicted by the complaint report initially filled out by the officers wherein plaintiff's cousin corroborated plaintiff's version of events, and the numerous reports by eyewitnesses who stated it was a drive-by shooting.

61. In fact, the notes taken by the District Attorney's Office in this case indicate that plaintiff was innocent and that the officers knew he was innocent all along.

62. According to the notes taken by the District Attorney's Office, they uncovered "significant evidence that [plaintiff] was innocent and that the cops knew this."

63. Further, the notes state that plaintiff's cousin told the DA's Office that he never told the cops that plaintiff shot him and that he does not know who shot him.

64. The notes from the District Attorney's Office further verify that eyewitnesses all reported that the shooting was a drive-by shooting and that the locations of the shell casing recovered from the scene of the shooting verify that it was a drive-by shooting.

65. Finally, the notes taken by the District Attorney's Office state that plaintiff's behavior in assisting his cousin, calling 911, and voluntarily providing a statement to the police were inconsistent with behavior of an individual who had just shot someone.

66. The reason the defendant officers falsely arrested, and maliciously prosecuted plaintiff was because they believed plaintiff knew the identities of the individuals that shot his cousin and was refusing to provide the officers with the names of the perpetrators.

67. The officers believed that by arresting and prosecuting plaintiff he would likely provide them with the names of the true perpetrators to avoid being prosecuted for a crime he did not commit.

68. Plaintiff was searched again at the precinct, was fingerprinted, photographed and detained in a holding cell.

69. After many hours in custody at the 75th Precinct, plaintiff was transported to Kings County Central Booking whereat his unlawful detention continued for many additional hours.

70. Plaintiff was unlawfully detained for 30 hours before he was finally brought before a judge and arraigned in Kings County Criminal Court.

71. At arraignment plaintiff was charged with serious felony crimes, including criminal possession of a weapon and assaulting his cousin.

72. Due to the severity of the crime he was accused of committing, plaintiff, who was an infant at the time, was remanded to Riker's Island at arraignment and was detained with adult prisoners in the ARDC facility for five additional days before he was released from custody because the District Attorney's Office was unable to indict him.

73. Plaintiff was required to make two Court appearances and on November 20, 2017 the District Attorney's Office affirmatively moved to dismiss and seal all charges brought against him because the charges could not be proven beyond a reasonable doubt.

74. At no point in time did plaintiff commit a crime or violate the law in any manner.

75. Defendants did not recover any illegal weapons, drugs or contraband from plaintiff's possession, custody or control at any time relevant herein.

76. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers have an objective factual basis to believe he violated the law or committed a crime.

77. At no time was plaintiff in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

78. The defendant police officers who did not physically touch plaintiff throughout the course of his arrest, but observed their fellow police officers violate plaintiff's rights under the Constitution of the United States and New York State Law and failed to take action to prevent their fellow officers from violating and/or continuing to violate the rights of plaintiff are liable to plaintiff for their failure to intervene.

79. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of the right to due process/ right to a fair trial to plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, maliciously abused process, and denied plaintiff the right to due process/ right to a fair trial, without probable cause and in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

83. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

89. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

91. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

96. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

98. Defendants lacked probable cause to search plaintiff.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

103. Plaintiff repeats and realleges paragraphs 1 through 102 as if fully set forth herein.

104. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

105. Defendants commenced and continued a criminal proceeding against plaintiff.

106. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

107. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

108. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

111. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 110 with the same force and effect as if fully set forth herein.

112. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

113. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

114. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

115. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

116. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

118. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

119. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 118 with the same force and effect as if fully set forth herein.

120. Defendants issued legal process to place plaintiff under arrest.

121. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

122. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

123. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

124. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

125. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

126. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

128. Defendants failed to intervene to prevent the unlawful conduct described herein.

129. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

130. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

131. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

132. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 131 with the same force and effect as if more fully set forth at length herein.

133. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

134. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 133 with the same force and effect as if more fully set forth at length herein.

135. Defendants owed a duty of care to plaintiff.

136. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, and maliciously prosecuting plaintiff.

137. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

138. All of the foregoing occurred without any fault or provocation by plaintiff.

139. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

140. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 139 with the same force and effect as if more fully set forth at length herein.

141. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

142. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

143. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

144. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

145. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

146. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 145 with the same force and effect as if more fully set forth at length herein

147. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

148. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

149. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

150. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

151. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

152. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

153. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

154. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Kemanie Bailey demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable costs attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 20, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 20, 2019

_____/s/
DAVID M. HAZAN